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Case Number: 24STCV32734 Hearing Date: July 22, 2026 Dept: 509

iCargoEx Inc. v. C.H. Robinson Transportation Company, Inc.

DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant C.H. Robinson Transportation Company, Inc.

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff iCargoEx Inc. (Plaintiff) contracted with defendant C.H. Robinson Transportation Company, Inc. (Defendant) for the delivery of freight. Plaintiff alleges that a third party stole the freight from Defendant's facility during the execution of the contract. Plaintiff brings a single cause of action for negligence.

Defendant now moves for summary judgment. No opposition was filed. [FN 1]

TENTATIVE RULING:

Defendant's Motion for Summary Judgment is GRANTED.

Defendant is ordered to file a [Proposed] Judgment consistent with this ruling.

Defendant is ordered to give notice.

DISCUSSION:

Motion For Summary Judgment

I. Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In analyzing motions for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Scaif v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff's case or a complete defense to plaintiff's action. (Code Civ. Proc. § 437c(o)(2); Bacon v. Southern Cal. Edison Co. (1997) 53 Cal.App.4th 854, 858.) Once the moving party has met the burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (Code Civ. Proc. § 437c(o)(2).)

II. Analysis

Defendant moves for summary adjudication of the sole cause of action for negligence and therefore, summary judgment. Defendant argues that Plaintiff's cause of action fails on numerous grounds.

First, the Court must "identify the issues framed by the pleadings." (Hinesley, supra, 135 Cal.App.4th at p. 294.)

Plaintiff alleges: "Defendant C.H. Robinson owes a duty of care to its customers such as Plaintiff iCargoEx Inc. to exercise proper care in selecting a competent motor carrier and securely transmitting shipment details to the motor carrier that it selects so that the shipment details are not intercepted by an unauthorized third party." (Compl. ¶14.) "Defendant C.H. Robinson also owes a duty of care to its customers such as Plaintiff iCargoEx Inc. to exercise proper care when releasing freight that it is holding in its facilities to a third-party motor carrier to ensure that the freight that it has contracted to ship is released to the proper party and not stolen." (Compl. ¶15.) "C.H. Robinson breached the duty of care it owed to Plaintiff iCargoEx Inc. by not selecting a motor carrier who would maintain the security of the transmission of the shipment details so as to allow the details of the shipment of the Freight to be unsecured and stolen intercepted by an unauthorized third-party thief. (Compl. ¶16.) "C.H. Robinson also breached the duty of care it owed to Plaintiff iCargoEx Inc. by not securing the transmission of the shipment details to the legitimate motor carrier that was supposed to pick up the Freight and deliver it to BJ's Wholesale located in Burlington NJ so as to allow the details of the shipment of the Freight to be unsecured and intercepted by an unauthorized third-party thief." (Compl. ¶17.) "Defendant C.H. Robinson also breached the duty of care it owed to Plaintiff iCargoEx Inc. by not properly checking the identity and/or credentials of the fraudulent motor carrier who arrived at Defendant C.H. Robinson's facility and stole the Freight." (Compl. ¶18.)

Next, the burden begins with Defendant to show that "one or more elements of a cause of action . . . cannot be established." (Aguilar, supra, 25 Cal.4th at p. 853.) Here, Defendant meets this burden.

Defendant argues "Plaintiff is not the real party in interest and, thus, lacks standing to assert its negligence claim in the first place." (Mot. at p. 9:6-8.) Indeed, "[t]he owner of the Cargo is Plaintiff's customer EliteLux." (UMF No. 24.) Except as otherwise provided by statute, every action must be prosecuted in the name of the real party in interest. (Code Civ. Pro. §367; Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1004.) "Thus, a person who commences a judicial proceeding is required to 'have a real interest in the ultimate adjudication.'" [Citation] Such an interest is lacking if the party

has 'neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.'" (Tulare Medical Center Property Owners Assn. v. Valdivia (2026) 119 Cal.App.5th 967, 992.) Therefore, Plaintiff lacks standing to bring an action arising from the loss of freight since the real party in interest is the owner of the freight, EliteLux, and not Plaintiff. This satisfies Defendant's burden to demonstrate that Plaintiff lacks standing to bring this action.

This switches the burden to Plaintiff to establish a triable issue of material fact. However, Plaintiff does not put forth any evidence because Plaintiff did not oppose this motion. This Court is aware of its duty to "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) But a plaintiff seeking to avoid summary judgment "must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing...For this purpose, responsive evidence that gives rise to no more than mere speculation cannot be regarded as substantial, and is insufficient to establish a triable issue of material fact." (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163, emphasis added, [bare assertion that moving party "fabricated" evidence is insufficient to avoid summary judgment.]) Here, Plaintiff has not put forth any admissible evidence whatsoever. Therefore, Plaintiff's cause of action for negligence fails as a matter of law because Plaintiff has not demonstrated it has standing to pursue this action. [FN 2]

Accordingly, Defendant's Motion for Summary Judgment is GRANTED.

IT IS SO ORDERED.

Dated: July 22, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiff's attorney was properly and timely served with the instant motion via email on April 17, 2026. (See Not. of Mot. at p. 4/6.)

FN 2 - Defendant further argues Plaintiff's action fails for four other reasons. (See Mot. at pp. 9-14, [wrong defendant, preemption, improper venue, and unlawful brokering.]) As Defendant's motion is granted entirely on the issue of standing, the Court need not reach a conclusion on these additional issues.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.